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Provision of December 12, 2024
Register of provisions
No. 833 of December 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, No. 196, as amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of the Regulation by Mr. XX against BDM Banca S.p.A.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The complaint against the Company and the investigative activity.

With a complaint dated October 4, 2022, Mr. XX represented to this Authority that he had exercised, against BDM Banca S.p.A. (formerly Banca Popolare di Bari S.p.A., hereinafter, the Company), the right referred to in Article 15 of the Regulation regarding data related to the employment relationship, by sending a registered letter, delivered on August 3, 2022, for the first time, and on August 25, 2022, for the second time, and that he had not received an adequate response.

In particular, following an invitation to regularize from the Authority dated July 5, 2023, the complainant specified on July 14, 2023, that "the response to the request for access to personal data of the [Company] appears to have occurred via email on 11/10/2022, that is, over 2 months from the first request made in the absence of any communication of an extension of the deadlines nor any reasons for the aforementioned delay, [...] the response provided is inadequate and incomplete regarding the requested personal documentation – only the evaluation form for the year 2019 was exhibited, with all requested periods omitted; - The response provided is also partial, not providing indications regarding the methods of processing the data, their origin, the retention period or the criteria used to determine such period, the categories of subjects to whom the data have been or will be communicated, the existence of automated profiling processes, and the data controller."

On July 25, 2023, the Department sent an invitation to the Company, which provided its response to the complainant and, for information, to the Authority, on August 3, 2023. On this occasion, the Company stated that:

"with reference to the [...] requests [of the complainant] of July 28 and August 20, 2022, and in addition to our response of October 11, 2022, we report [...] the requested information" (see note 3/08/2024 cited, p. 1);

"the purpose of processing the [...] personal data [of the complainant] is the management of the [...] employment relationship [of the complainant] with the Bank" (see cited note, p. 1);

with reference to the categories of personal data, "the following are processed – for the purposes stated above – identifying data (including image) and contact data, training, economic data, and data

related to the performance of the employment relationship, among which are included those for which a response was requested, as well as those belonging to special categories of data (union membership)” (see cited note, p. 1);

d. “the categories of recipients to whom the data are communicated for the purposes stated above are the Parent Company, entities in relation to tax and social security obligations, insurance companies, service companies, professionals” (see cited note, p. 1);

“the [...] personal data [of the complainant] are retained for the duration of the [...] employment relationship [of the complainant] existing with the Bank and subsequently in relation to the regulatory/legislative provisions in force for the different categories of data” (see cited note, p. 1);

“the Bank does not use an automated decision-making process for the purposes stated above” (see cited note, p. 1);

with reference to the origin of the data, “the personal data for which a response was requested were provided directly by [the complainant] at the time of hiring, or by [the complainant] during the course of the employment relationship (such as those detected by the attendance tracking system), or originated by the Bank through the organizational units responsible for managing the various categories of processing” (see cited note, p. 1);

“data controllers designated by the Bank are the IT outsourcer, tasked with managing the applications supporting the processing related to the requested data, and another company for the storage of archived paper documents containing the requested data” (see cited note, p. 1);

with reference to “documents and emails containing information [...] related to [the complainant],”

“noting that the attachments to this and our previous response contain the documents that [...] refer to [the complainant], [...] the email messages exchanged between the

Organizational Units of the Bank and [...] referred to [the claimant] contain the same data already communicated, but also data of third parties (including email addresses of the sender and recipients) that cannot be disclosed (see cited note, p. 2);

“On this occasion, we are resending all the documentation in our possession, already sent via email on October 11, 2022, with the clarification that the evaluation sheet for the year 2019 was meant to supplement the other evaluation sheets available and already delivered [to the claimant] (along with other documentation) during the previous access that took place in 2009” (see cited note, p. 2);

“The reasons for the delay in the response are to be found in the number and complexity of the requested information, also relating to past years over a period of more than twenty years, of which circumstance [the claimant] had been informed by telephone by the Head of the Industrial Relations Unit of the Bank” (see cited note, p. 2).

On November 13, 2023, the Authority sent a request for information pursuant to Article 157 of the Code to the Company, which, on December 7, 2023, sent its response. On that occasion, it stated that:

“The evaluation sheets from 2003 to 2008 were delivered with the conciliation report of October 30, 2009, while the sheet for 2019 was sent via email on October 11, 2022” (see note 13.11.2023 cited, p. 1);

“Only recently – given the extreme complexity of the search, which became even more burdensome considering that the requests concerned an extremely extended time frame during which various corporate operations occurred, necessitating the archiving of documentation – the evaluation sheets for the years 2010-2018 were retrieved, delivered to the worker during the meeting held on October 25, 2023, at the management offices in Bari” (see cited note, p. 1);

“With reference to the communication that the Company stated it had provided to the claimant ‘by telephone [through the] Head of the Industrial Relations Unit of the Bank’ regarding the impossibility of providing a response within one month of receiving the access request, we are able to produce the minutes of the meeting of October 25 [...] in which [the claimant] confirms having received the aforementioned phone call informing him of the need for an additional deadline for the response, in addition to expressing satisfaction with the response received and the documentation provided by the Bank” (see cited note, p. 1).

****2. The initiation of the procedure and the Company's submissions.****

On March 11, 2024, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 12 and 15 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

On March 22, 2024, the Company submitted its defense writings and on that occasion highlighted that:

"The request of the interested party was made several years after a conciliation in the union context that took place in 2009, relating to a prospective labor dispute – during which a request for access to personal data was also made pursuant to the Privacy Code – at the end of which the employee, accepting the economic offer of the bank, received copies of various documents related to the performance of his employment relationship, some of which are part of the request in question" (see note 22/03/2024 cited, p. 1);

"The request submitted in 2022, addressed to the then Personnel Administration Office, was therefore considered a reiteration of the previous labor claim, also aimed at reaching a new economic agreement based on that signed in 2009, both due to the correspondence with the previous matter mentioned above and due to the type of documents requested (for example, communications of assignments, locations of the bank where specific tasks had been performed over time, summary evaluation judgments, etc.)" (see cited note, p. 1);

"In the response provided by the Bank on October 11, 2022, a substantial amount of documentation was transmitted, dating back up to twenty years prior to the date of the request, focusing attention on documents related to the execution of the work performance rather than on aspects more specifically related to the processing of personal data" (see cited note, p. 1);

"The requested information was supplemented in the second response provided by the Bank on August 3, 2023, as well as in the meeting that took place on October 25, 2023, after which the requester (as evidenced by the minutes of the same meeting) not only declared himself 'fully satisfied with the response and the documentation provided by the bank in response to his requests,' but had in fact waived the right of access, specifying 'that he had nothing further to claim' regarding the same requests. In consideration of this, the Bank believed it had fully satisfied the requests of the interested party" (see cited note, p. 1);

"The delay accumulated in satisfying the requests for access to personal data and documentation of the employee must, however, be considered an episodic fact, [...], attributable to the initial handling of the request within the context of previous labor claims" (see note).

cit., p. 1);

"such episodicity can be affirmed in relation to the constant high attention that our banking Group reserves for the matter of personal data protection, which is based on the management system of the related obligations, [...] as well as the adoption of risk mitigation measures specifically implemented to prevent the recurrence of such an episode" (see cited note, p. 1).

In the response dated March 22, 2024, the Company attached a copy of the document titled "Group Policy on the Processing of Personal Data," updated in December 2023, a copy of the document titled "Operational Procedure for Managing the Rights of Data Subjects," as well as the statement referred to in Article 83 of the Regulation, which states that:

- with reference to Article 83, paragraph 2, letter a), of the Regulation "in relation to the request for access to the employee's data dated July 28, 2022, received on August 3, 2022, by the bank and the notification of violation to this Authority, it is specified that: - there is only one data subject involved; - the request of the data subject was made several years after a union conciliation in 2009";
- "on October 25, 2023, a meeting took place between the head of the Industrial Relations Unit of the bank and the data subject, to integrate and complete the documentation already produced on August 3, 2023";
- with reference to Article 83, paragraph 2, letter b), of the Regulation "the initial request of the data subject, addressed to the then Personnel Administration Office, was managed for about a year, until July 26, 2023, the date on which the invitation to comply from this Authority was first brought to the

attention of the Bank's DPO, solely as a reiteration of actions by the employee aimed at obtaining a new economic agreement based on that obtained in 2009. From the moment the request was taken over, the DPO activated the Industrial Relations Unit, the current contact for the matter related to the request in question, requesting a summary report containing the data and documentation related to various aspects of the employment relationship of the data subject from 1994, the year of the employee's hiring at the acquired Bank of Calabria. Based on this summary, the response to the data subject's request was provided on August 3, 2023, sent for information to this Authority”;

- with reference to Article 83, paragraph 2, letter c), of the Regulation “the Bank has prepared and published, with visibility for at least five consecutive days every two months, a specific awareness communication, via notice on the homepage of the corporate intranet, aimed at reiterating the necessity to involve the DPO office within the short term provided by internal regulations (by the day following receipt) in case of requests to exercise the rights of data subjects or requests that contain any reference to the regulations on personal data protection or doubts regarding the classification of the request. The Bank has also planned specific training to be delivered by May to the Human Resources and Industrial Relations organizational units of the Group regarding the management of requests to exercise rights by employees and similar individuals (such as interns, job candidates, and external consultants)”;

- with reference to Article 83, paragraph 2, letter d), of the Regulation “a ‘Group Policy on the Processing of Personal Data pursuant to EU Regulation 2016/679 and Legislative Decree 196/2003 - December 2023 edition’ has been issued at the Bank, which promotes the principles of personal data protection and a corporate regulation (Privacy Manual - Corporate Regulation for the Processing of Personal Data - updated January 2023) implementing these principles, which refers internally to the ‘Operational Procedure for Managing the Rights of Data Subjects.’ This regulation also includes the rules that authorized persons for the processing of personal data, listed after the required risk analyses in the Bank's processing register, must observe to comply with the provisions of European and Italian regulations on personal data protection”;

- “the Bank has adopted a dedicated policy for privacy by design and by default, accompanied by a specific sheet and a methodology for impact assessment”;

- “the employees of the Bank receive training on personal data protection (e-learning courses titled ‘The New European Regulation on Data Protection’ and ‘Personal Data Protection: GDPR and Privacy Code’). Furthermore, in the first quarter of last year, various remote training sessions were held involving the Network (Branch Managers) to reiterate the methods of compliance with the provisions of the relevant regulations, including the response to requests to exercise the rights of data subjects, in relation to network operations”;

- “in December 2023, with the aim of standardizing and giving greater emphasis to the monitoring activities on the regulations regarding personal data protection, the Data Protection Officer Function was centralized at the Group level, and the Group components designated a single DPO, an employee of the Parent Company”;

- with reference to Article 83, paragraph 2, letter f), of the Regulation “the DPO Function, from the moment it was involved, intervened directly in the investigation of the data subject's request, managing [...] the requests for information received.

the Regulation.

3. Outcome of the procedure.

3.1 Established facts and observations on the regulations regarding personal data protection.

According to Article 12 of the Regulation, “the data controller shall take appropriate measures to provide the data subject [...] with the communications referred to in Articles 15 to 22 [...] regarding the processing in a concise, transparent, intelligible and easily accessible form, using clear and plain language [...]. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means” (par. 1); furthermore, “the data controller shall facilitate the exercise of the rights of the data subject under Articles 15 to 22” (par. 2).

Paragraph 3 of Article 12 of the Regulation also states that “the data controller shall provide the data subject with the information regarding the action taken on a request under Articles 15 to 22 without undue delay and, in any case, no later than one month from the receipt of the request. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller shall inform the data subject of such extension and the reasons for the delay within one month of receiving the request. If the data subject submits the request by electronic means, the information shall be provided, where possible, by electronic means, unless otherwise indicated by the data subject.”

Paragraph 4 of the same article specifies that “if the data controller does not comply with the request of the data subject, the data controller shall inform the data subject without delay, and at the latest within one month of receiving the request, of the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.”

Article 15 of the Regulation states that “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, to obtain access to the personal data and to the [...] information” indicated in the same article (par. 1) and that “the data controller shall provide a copy of the personal data undergoing processing. In the case of further copies requested by the data subject, the data controller may charge a reasonable fee based on the administrative costs. If the data subject submits the request by electronic means, and unless otherwise indicated by the data subject, the information shall be provided in a commonly used electronic format” (par. 3).

3.2 Established violations: violation of Articles 12 and 15 of the Regulation.

Based on the elements acquired during the investigation as well as subsequent evaluations by the Office, it has been established that the Company, in response to the request for access to data submitted by the complainant on August 3, 2022, and reiterated (with additions) on August 25, 2022, provided an inadequate response as it was incomplete: only during the investigation conducted before the Authority, following the submission of the complaint, did the Company transmit some of the requested information that had not been previously indicated, as well as documentation that was not delivered with the response of October 11, 2022.

In this regard, the Company itself stated that “in the response provided by the Bank on October 11, 2022, extensive documentation was transmitted, dating back up to twenty years prior to the date of the request, focusing attention on the documents related to the execution of the work performance rather than on the aspects more specifically connected to the processing of personal data” (see note 03/22/2024, p. 1) and that the content of the note of August 3, 2023 - sent following an invitation to comply from the Authority - supplemented, with reference to the complainant's access requests, the response sent to the complainant on October 11, 2022 (see note 08/03/2023, p. 1).

The Company also declared that it integrated and completed the documentation produced on August 3, 2023, during a meeting between the head of the Company's Industrial Relations Unit and the data subject, which took place on October 25, 2023 (see the schedule referred to in Article 83 of the Regulation attached to the defense writings of March 22, 2024).

In particular, the Company, only during the response sent to the Authority on August 3, 2023, provided the complainant with some information subject to the exercise of the right of access requests, specifically the purposes of processing, categories of personal data, categories of recipients, retention period of personal data, information regarding the non-use of automated decision-making processes for managing the employment relationship, source of the data, and data controllers.

Furthermore, the Company, only on October 25, 2023 – during the meeting organized with the complainant – delivered to the complainant the evaluation sheets related to the years 2010-2018 (see minutes of the meeting of 10/25/2023, attached to the note of 12/07/2023).

Regarding the phone call that took place between the Company and the complainant, during which, according to what both stated, the complainant was informed of the impossibility of fulfilling the request within a month, it is noted that the satisfactory response for the complainant arrived about one year and two months after the submission of the requests, thus exceeding a considerably longer time than the two-month extension (to be added to the ordinary month) provided by the Regulation.

Regulation (see art. 12 par. 3 of the Regulation: the deadline of one month to provide feedback "may

be extended by two months, if necessary").

Considering the provisions of art. 12 par. 4 of the Regulation, it is also noted that the Company, in its response of October 11, 2022, did not indicate, among other things, any reason to explain the (temporary) impossibility of providing those documents that were subsequently delivered to the complainant during the investigation opened before the Authority, nor did it indicate the possibility, in the face of a partial denial of the access request, to file a complaint with the Authority or an appeal to the ordinary judicial authority.

As specified in relation to the right of access by the Guidelines 1/2022 on the rights of data subjects - Right of access of the EDPB, adopted on March 28, 2023, which were slightly modified on May 30, 2024, "if they refuse, in whole or in part, to satisfy a request for access pursuant to Article 15, paragraph 4, GDPR, the data controllers must inform the data subject of the reasons without delay and no later than one month from the receipt of the request (Article 12, paragraph 4, GDPR). The reasoning must refer to the concrete circumstances to allow the data subjects to assess whether they intend to oppose the refusal, and must include information on the possibility of filing a complaint with a supervisory authority (Article 77 GDPR) and of bringing a judicial action (Article 79 GDPR)" (see par. 6.2, par. 174).

The data controller, therefore, following a request for the exercise of rights submitted by the data subject to whom the data subject of the request refers, must provide feedback either in the sense of accepting the request (art. 12 par. 3 of the Regulation) or containing the indication of the reasons for the denial and the right to file a complaint with the Authority or an appeal to the ordinary judicial authority.

Regarding the evaluation sheets for the years 2008, 2007, 2006, 2005, 2004, 2003, concerning which the Company declared that they had already been delivered "during the previous access that took place in 2009" and for which a copy of the conciliation report of October 30, 2009, was produced as confirmation (see note of 3/8/2023), the orientation of the jurisprudence, frequently cited by the Authority, is recalled, according to which the right of access "cannot be understood, in a restrictive sense, as the mere right to know any new and additional data compared to those already entered into the knowledge base and, therefore, at the disposal of the same data subject interested in the processing of their data, since the purpose of the [right] is to guarantee, in protection of the dignity and privacy of the data subject, the verification *ratione temporis* of the occurrence of the insertion, permanence or removal of data, regardless of the circumstance that such events had already been brought to the knowledge of the data subject by other means, verification carried out through access to the data collected about oneself at any time in one's relational life" (Court of Cassation December 14, 2018, no. 32533).

In this regard, the aforementioned Guidelines 1/2022 on the rights of data subjects - Right of access specify that "data subjects have the right to access all data processed concerning them, or parts of it, depending on the scope of the request [...]. Consequently, if a data controller has already satisfied a request for access in the past, and provided that the request is not excessive, the data controller cannot restrict the scope of the new request. This means that in relation to any other access request from the same data subject, the data controller should not inform the data subject only about changes to the personal data processed or the processing itself, made after the last request, unless the data subject explicitly consents. Otherwise, data subjects would be obliged to collect the personal data they provided to obtain a complete set of personal data concerning the information on processing and the rights of data subjects" (point 111, par. 4.2.3).

Furthermore, the aforementioned Guidelines specify that "the general purpose of the right of access is to provide individuals with sufficient, transparent, and easily accessible information regarding the processing of their personal data, so that they can be aware of the processing and verify its lawfulness, including with regard to the accuracy of the processed data" (p. 3) and that "the data subject does not have [...] the obligation to justify the access request, and it is not up to the data controller to assess whether the request will actually be useful to the data subject to verify the lawfulness of the relevant processing or to exercise other rights. The data controller must comply with the request, unless it is evident that it has been submitted based on rules other than those concerning data protection" (p. 3).

For the reasons stated above, it is therefore established that the conduct of the Company has been in contrast with the provisions of Articles 12 and 15 of the Regulation.

In this regard, reference is made to the contents of the "minutes of the meeting" of October 25, 2023, in which it is reported that the complainant "declares to be fully satisfied with the feedback and the documentation overall provided by the Bank in response to his requests, regarding which he declares to have nothing else to claim."

In this regard, it is noted that, contrary to what was stated by the Company, according to which the complainant, following the meeting of October 25, 2023,

"stating that they have no further claims"

would thus have "waived the right of access" (see note 22/03/2024, p. 1), the conduct of the claimant cannot be construed as a waiver of the

exercise of the right of access, as it is merely a statement that they consider sufficient what was sent by the Company, among other things, only after multiple reminders and following the intervention of the Authority.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Art. 58, par. 2, Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow the closure of the present procedure, as none of the cases provided for in Art. 11 of the Regulation of the Authority no. 1/2019 apply.

The processing of personal data carried out by the Company and specifically the absence of an adequate response to the access request is, in fact, unlawful, as stated above, in relation to Arts. 12 and 15 of the Regulation.

The violation, ascertained in the terms outlined in the reasoning, cannot be considered "minor", taking into account the nature and severity of the violation itself, which concerned the exercise of the right of access to data, as well as the degree of responsibility and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority also deemed that the level of severity of the violation is medium, in light of all relevant factors in the specific case, and in particular the nature, severity, and duration of the violation, considering the nature, subject, or purpose of the processing in question

as well as the number of affected individuals and the level of damage suffered.

The Authority also took into account the criteria relating to the intentional or negligent nature of the violation and the categories of personal data

affected by the violation, as well as the manner in which the supervisory authority became aware of the violation (see Art. 82, par. 2, and Recital 148 of the Regulation).

It is finally considered that the conditions of Art. 17 of the Regulation of the Authority no. 1/2019 are met.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and ancillary sanctions (Arts. 58, par. 2, lett. i), and 83 of the Regulation; Art. 166, paragraph 7, of the Code).

The violation of Arts. 12 and 15 of the Regulation entails the application of the administrative sanction provided for by Art. 83 of the Regulation.

The Authority, pursuant to Art. 58, par. 2, lett. i) of the Regulation and Art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Art. 83 of the Regulation, through the adoption of an injunction order (Art. 18, Law of November 24, 1981, no. 689), in relation to the processing of personal data carried out by BDM Banca S.p.A., which has been found to be unlawful, as stated above.

It is deemed necessary to apply paragraph 3 of Art. 83 of the Regulation where it provides that “if, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Art. 83, par. 5.

With reference to the elements listed in Art. 83, par. 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Art. 83, par. 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

- the severity of the violation concerning cases punished more severely due to the interest protected by the violated norms (regarding the exercise of the rights of the data subjects);
- the duration of the violation (approximately one year and two months);
- the number of affected individuals equal to one;
- the previous violation, ascertained with provision

no. 160, of March 7, 2024, also concerning the exercise of the right of access; with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the objective elements of the conduct of the Company and the degree of responsibility of the same, which violated the obligation of diligence provided for by the legal framework, have been taken into account; in favor of the Company, the activities carried out by it have been considered, in particular the preparation of a specific communication, through a notice on the homepage of the corporate intranet, aimed at reminding the necessity to involve the RPD office, by the day following the receipt of the request, in case, among other things, of requests for the exercise of the rights of the data subjects, the training of personnel regarding the exercise of rights, and the corporate documentation prepared on the matter.

It is also believed that the principles of effectiveness, proportionality, and dissuasiveness to which The Authority must adhere to the determination of the amount of the sanction (art. 83, par. 1, of the Regulation), considering the economic conditions of the offender, determined based on the revenues obtained by the Company with reference to the financial statements for the year 2023 (the latest available). In light of the aforementioned elements and the evaluations made, it is deemed appropriate, in this specific case, to apply an administrative sanction against BDM Banca S.p.A. in the amount of €20,000 (twenty thousand/00).

In this context, it is also deemed necessary, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, to proceed with the publication of this section containing the injunction order on the Guarantor's website. This is in consideration of the concrete characteristics of the case in question, particularly evaluated in light of the conduct of the Company, which provided a response that the complainant expressed satisfaction with, only following the opening of the investigation by the Authority, and also considering the previous measure adopted by the Authority against the Company regarding the exercise of rights (measure no. 160 of March 7, 2024).

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR pursuant to arts. 57, par. 1, lett. f) and 83, of the Regulation, notes the illegality of the processing carried out by BDM Banca S.p.A. (formerly Banca Popolare di Bari S.p.A.) represented by its legal representative, with registered office at Corso Cavour n. 19 – Bari – C.F. 00254030729, as stated in the reasoning, for the violation of arts. 12 and 15 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, to the same BDM Banca S.p.A., to pay the sum of €20,000 (twenty thousand/00) as an administrative pecuniary sanction for the violations indicated in this measure.

THEREFORE, IT INSTRUCTS

BDM Banca S.p.A. to pay the aforementioned sum of €20,000 (twenty thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this measure, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the filing of the appeal as indicated below, in accordance with art. 10, par. 3, of legislative decree no. 150 of September 1, 2011.

DISPOSES

pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the Authority's website;
pursuant to art. 154-bis, par. 3 of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, the publication of this measure on the Authority's website;
pursuant to art. 17 of the Regulation of the Guarantor no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of legislative decree no. 150/2011, an appeal against this measure may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the measure itself, or sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scoraza

THE DEPUTY SECRETARY GENERAL

Filippi